

THE REVIEW

Vol. I, No. 7

July, 1911

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VOLUME I, No. 7.

JULY, 1911

THE REVIEW

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THE FARM TREATMENT OF MISDEMEANANTS

JAMES F. JACKSON

Superintendent of Charities and Correction, Cleveland, Ohio

The old type institution for misdemeanants failed to accomplish satisfactory results, mental, moral and physical. It seemed incapable of developing industry; it was unhygienic, without classification and with no adequate facilities for developing a man's will or increasing his capacity to do right. There was no individualism. The old workhouse was typical of the most intensified institutionalism, and institutionalism for an adult is an assured failure. Neither the arrangements of the building nor the manner of life nor the administration were conducive to the rehabilitation of the man. The old type of workhouse was constructed to avenge the wrong and not to correct the wrong doer.

When the failure of that plan was fully recognized, people cast about for a remedy. They saw the success and satisfaction attending the location of charitable institutions in the country, and the idea of similar locations for various types of prisons occurred to them. And the cry against prison-made goods gave impetus to the movement.

The prison did seem to be the last place to make real the fact that "a man's a man for a' that." But when the plowshare and the pruning hook began to supplant the stripes and the dungeon, people were certain that at last the dignity of manhood would be realized and that life and immortality were come to light.

St. Paul and Minneapolis were among the first to adopt the farm policy. Various other corrective institutions were established upon farms in foreign countries and in this country, especially within the past twenty years. One of the best institutions for misdemeanants thus established was located at Witzwyl, Switzerland, in 1891. But I wish today to speak with particular reference to Cleveland's situation, its old workhouse and its new correction farm.

The Cleveland workhouse was constructed over forty years ago on the old lines for 500 prisoners, two miles from the centre of the city. In 1904 and 1905, about 750 acres were purchased by the city nine miles from its centre. Upon this land building was commenced several years later. Thus far there is built only the "service building" which at present fulfills all purposes. Ultimately, it is to be used for storerooms, and shops. There are also to be built dormitories for trusties and semi-trusties, cell-blocks for the least tractable, kitchens, dining rooms, a chapel, women's industrial building, school building and a greenhouse, all within a high wall enclosing eleven acres. The present intention is that the buildings and wall shall be constructed by the labor of inmates. Unfortunately there are no funds in sight to proceed with this construction.

All commitments are made to the original workhouse in the city. There the women remain, but about two-fifths of the men are transferred to the correction farm. On a recent day the 102 men at the correction farm were assigned to work as follows: on construction of the sewage disposal plant, 24; in the stone quarry, 7; on the farm, 10; in the garden, 7; driving teams (working the farm and hauling material to the filter bed), 12; care of horses and stock, 10; to work on the adjoining infirmary farm, 10; firemen, 2; carpenter, 1; barber, 1; and in the preparation and serving of the meals and care of the buildings and grounds, 18. Some of these last eighteen are unable to do heavy work, but all have fresh air and sunshine daily. At other times men do concreting, making artificial stone, fertilize and drain the land, which is not fertile, make roads on the farm and later they will construct the wall and buildings, plant trees and perform every sort of labor that will develop the land, and cause it to be highly productive and attractive in appearance. I also hope that later they will make and repair the needed wagons, tools and all the smaller farm implements; in fact they now do some of that work, especially the repairing.

An apple orchard and much small fruit have just been planted under the direction of the state agricultural department. Last year by attention to pruning, spraying and smudge fires on cold nights, ours was one of the few orchards bearing fruit in all that region. Bee culture will be introduced and scientific forestation is to be developed. We are about to construct a dairy barn entirely by prison labor, that will be a model of simplicity, sanitary construction and efficiency for the neighboring country.

We propose that the farm shall gradually become a model in all respects. In fact, this year we will produce certified milk for the city and the contagious disease hospitals. We plan, as soon as possible, that the correction farm shall produce the meat, milk, vegetables and fruit, both fresh and canned, for the entire workhouse and the public hospitals, while the adjoining infirmary farm will render similar service for its own use and that of the growing tuberculosis sanatorium.

From the standpoint of the prisoner, the farm policy is to give to each man the largest degree of liberty consistent with the well-being of others. The ultimate purpose is to employ as many without the walls as possibly can be trusted, and to employ out-of-doors within the walls all the remainder except those whose conduct imperatively demands closest supervision.

For years there will be work for all workers, no "idle-house" in any sort of weather or trade conditions. Every working day from twelve to twenty men are sent to work on the adjoining infirmary farm. Such transfer was one of the purposes of placing the infirmary on a great contiguous tract of land. But the plan works to the detriment of the correction farm which for years and perhaps always can use to advantage the labor of all men committed to its care. No key is turned on these men during the day. The night guard and the locked door are more to remove temptation than to prevent escape. You realize this when you know that all these men, instead of sleeping in stuffy cells, sleep in large dormitories, giving them every facility for overpowering the night watch and making their escape. Prisoners arrive a typical bridewell company, drunken, dirty, diseased and discouraged. They go away bronzed, with regular habits of living, accustomed to work, with a new determination and a new grip. Of course some fail, and return. But we do not assume to insure immunity against all the wiles of the world, the flesh and the devil.

Americans seem in constant search for a cure-all. There is a great demand for some hobby for the alert philanthropist to ride. In their order institutionalism, organized charity, juvenile courts, medical charities and country life have had their turn in the spot light. Each is efficient but all together are not sufficient. It is urged that if a convict be sent out under the blue sky to breathe God's pure air, behold green fields and hear the birds sing from the swaying boughs he will become as one of the best citizens, especially if he digs in the dirt. But unfortunately the country does not

afford the alchemy which converts men into angels. This is amply attested by the record of most diabolical crimes committed by country-bred men who would not know an elevator from a subway. The farm prison is no panacea, but it is tremendously worth while.

The men do not wear stripes in either prison. Consideration is combined with firmness in all our dealings, for it is the purpose that every requirement shall appeal to the fair-minded prisoner to be in his interest and for his benefit.

From the experience of the Cleveland correction farm several rather obvious deductions may be made; we are dealing with men, free moral agents, and a good physical environment does not guarantee their reform any more than does instruction in good rules for living.

We have learned that men are sent to the House of Correction for a purpose. These men have faults to be corrected. These defects in the human mind are to be corrected and no ordinary workhouse sentence will effect a cure of such defects as are hereditary or fully acquired. There is some concealed materialism abroad under the guise of environment, but the rankest exponent of environment should not expect to cure twenty years of bad surroundings accompanied by indifferent or bad actions even by a ninety day period on a farm. And ninety days is in excess of the average period of confinement, although Cleveland "golden rule policies" do not burden us with five, ten or fifteen day men.

Our first appeal is to their sense of honor. Their appreciation of the confidence reposed in them often proves a potent influence for good. The transfer to the farm is such an expression of confidence. But it is given with discretion. Hardened criminals are not sent on distant missions unattended. In fact they are rarely transferred to the farm.

As a part of their teaching the misdemeanants need discipline. It is necessary to keep the men on the farm for some time if they are to receive the needed development, especially the men who are sent for intoxication. Discipline is essential to instruction whether in the day school, the home or any other form of education. Many of these men are committed because of their lack of self-control and time is required for its development. We have learned that the men need to be taught the habit of industry and how to do some particular thing well. This is for their good while they are on the farm,

and it is essential after they return to their homes. We have learned that not all men can be trusted, and we believe it has a bad influence on a man to attempt to get away, so we make him feel the bad result when he is caught. And the police are faithful to help catch deserters. Personality is a big factor; one man will accomplish far more with and for prisoners than another.

The farm does build up the body of the anaemic; it gives a good physical development. Moreover, the habit of industry can very much better be taught where results are being achieved on the farm than where work is being done at little or no profit in a factory. And efficiency is better developed on the farm. The farm has a direct physical value and an indirect mental and moral value. It clears a man's mind and allows him to think straight. It affords a foundation for developing the spiritual structure, though of itself it will only slightly develop one mentally or morally. The man is now physically well, having had lessons in life. Here is the opportunity to further develop his will in order that he may do right. Looking to that end, we have introduced the regular presentation of the gospel in an orderly way. We intend to teach by example, but we need an official who shall be recognized by the prisoners as their friend, one who shall know them and make it his exclusive business to help them establish the desire to do right and aid them to be able to fulfill that desire. This seems one of the unsolved problems in Cleveland and in nearly all such institutions.

We have the parole system in operation, though there is not help enough for its most efficient execution. There is the Brotherhood Club for the men who have no home to which to go, established at the suggestion of a former prisoner. There a man may stay until he appears strong enough to live a normal life. The club is intended to be self-sustaining.

In my opinion, the country is the place for the misdemeanant, for the very obvious reason that it affords plenty of light, pure air, a variety of good food and wide opportunity for productive occupation for the prisoners. There, work is purposeful, not a time-killer. They work, eat, sleep, have recreation and religious teaching, all under approximately normal conditions. Every man is treated with kindness and consideration; discipline is not on parade. In short, the prisoner is treated like a man and to the extent that there is manhood in him it will come out. The purpose is to develop honor and

faithfulness, to accustom every man to useful occupation and to teach him to be effective. The officers are not armed, they are not even called guards. In fact, they act as teachers, foremen, or farmers as the occasion requires.

There is so much work to do in developing, enriching and cultivating the land, in erecting buildings, in making roads, that every feasible labor-saving machine is used. This of itself speaks to the man the appreciation of his work as a man and not a substitute for a machine.

The hope is that the farming and the making of its equipment, and incidentally the care of the prisoners and their quarters, will profitably occupy practically all the available labor in such manner as to make a man not only fit but anxious to work. It is hoped that a large majority will be improved and many rehabilitated in an environment which favors giving every man all the chance he will use to reform. Moreover, it will thereby be apparent that the government is not only strong, but so merciful and so genuine in its fatherly desire to help each man that in turn he will cease to be "agin" the government; that he will turn from being a consumer to become a producer of taxes, turn from being his own and other's enemy to become a friend to men.

WHAT KANSAS CITY IS DOING

E. K. BINGHAM

Superintendent Helping Hand Institute, Kansas City, Mo.

Kansas City made great strides toward a better handling of its misdemeanants when it created a new municipal department called the Board of Public Welfare, and placed its correctional institutions under its control. The board at first was appointed by the mayor, it is self-elective and some of its members were social workers, some broad-minded business men, and its first president was a most excellent organizer, a philanthropist and a man of great personal devotion to the cause of humanity.

The newspapers unanimously supported its policies and consequently it received the popular indorsement which freed it from political handicaps. These facts have been the combination which accomplished results which were unusual in its less than two years existence. Its pivotal activity has been a farm colony (which of course we all agree is the indispensable feature of effective correctional work). Of course, also, like other farms, it builds up the under-nourished, gives care to the physically unfit, and also, whether by farm work or in learning a trade, the work habit which is acquired helps largely in rekindling the spark of ambition in the man whom repeated failure has utterly robbed of the power of initiation and confidence in himself. Another help is that no man is ever released penniless, but is allowed to earn something during the last few days of his imprisonment. But the greatest factor which has contributed to a more successful handling of cases has been the emphasis placed upon the individual man. A careful personal record system with daily notations of a prisoner's conduct and facts concerning his mental, moral and physical condition permits a scrutiny and a kind of helpfulness otherwise impossible.

The records also are examined by a parole committee of three members which meets weekly and recommends certain paroles to be acted upon by the Board of Welfare. A representative of the parole committee visits the "holdovers" at five o'clock each morning, talks with each prisoner, and makes out record cards which are taken into the municipal court by this

same representative, who, sitting beside the judge, is frequently asked for information when prisoners are brought in, his record often deciding the sentence imposed.

Forty-six per cent. of the commitments for 1910 were paroled—or 1,660 persons—of whom 150 were returned to custody. Nine parole officers confirm the records by weekly visits to the homes or places of employment, and a woman friendly visitor looks after the needs of prisoners' families during their imprisonment and also during the prisoner's parole. From non-support paroled men \$8,346.21 was collected and paid over to the dependent families.

During the past winter it occurred to me that the city needed an inspector of the unemployed, a policeman without a club, who should go every day among the homeless men in the lodging houses, saloons and on the street and talk with them, directing them to pay jobs if possible, or if not, directing them to the municipal quarries in the parks, which were operated to provide work to the unemployed, for 150 to 340 men a day earning meal and lodging tickets there at the usual rate paid for rock cracking. Or if the man was found to be making no effort to find work, after several days this officer, being familiar with the facts, could arrest for vagrancy. This idea was suggested to a police commissioner and an inspector of the unemployed was appointed. In addition to the above duties, he goes into municipal court each day, appearing as an advocate of many homeless men, a class so often unjustly accused and arrested on circumstantial evidence. His desk is in the employment office which is financed by the Board of Welfare, but is managed by and is in the Helping Hand Institute (a private charity which the Board of Welfare uses as a municipal lodging house for meals and lodging for all dependent cases.) The seven hundred men per day who lodge there are practically under the eye of this inspector of the unemployed, and the deterrent effect for the misdemeanor is evident.

Among other classes of misdemeanants that Kansas City is reaching is the lodging house keeper, his misdeeds being brought to light by the housing inspection now in progress.

The endorsement of the Charities Bureau, or rather the lack of its endorsement, is eliminating the unwise free soup charities and the soliciting frauds—these are of course among the very harmful offenders because of

the shiftlessness which they promote. At the suggestion of this Bureau the police have stopped the practice of women soliciting money in saloons.

Another class is handled by the Recreation Department of the Board of Welfare, as evidenced by the dance hall inspection. For every public dance a license must be secured from this recreation department. This department then sends an inspector to each dance to learn if all its rules are being observed. These inspectors also keep a sharp lookout for young girls and learn their names and addresses. These names are turned over the next morning to the supervisor of police matrons who sends one of her assistants to call on the parents of the girl to inform them where their daughter was the evening previous. Many times the parents had not known of the facts, or had been deceived by the girls. Such supervision can but bring about good results.

The Free Legal Aid Bureau averages about 400 cases per month, prosecutes wife deserters and has brought them in many instances home from other states. The Welfare Loan Agency during its few months of existence has eliminated several of those detestable misdemeanants, loan sharks.

Perhaps I've spoken of many more varieties of law-breakers than Dr. Lewis had in mind when he asked me to speak a few moments on this subject, but it was hard not to go a little further and mention these different agencies which are making some degree of progress along this line in Kansas City.

ORGANIZATION OF SYSTEMS OF PROBATION AND PAROLE

CHARLES A. DE COWRCY

Judge of the Superior Court, Massachusetts

The two essentials of success in probation work are:—judges who have an intelligent and sympathetic interest in the problem, and probation officers fitted by temperament and training to secure the best possible results.

To further define these essentials, we need judges who will not discredit the system by extending probation to persons not likely to profit by it, and who will apply it wherever it can be done with due regard to the protection of the community, and where the past history and present disposition of the person investigated indicate that he may reasonably be expected to reform without punishment. And we need probation officers who possess not only sympathy and zeal, but knowledge of human nature, tact, firmness and patience.

How shall we secure such judges and officers? The active friends of probation can influence public opinion in the election or appointment of persons able and willing to consider probation on its merits. It is such a human problem that it is difficult to conceive of a man otherwise fitted for judicial position who will not apply probation with intelligent sympathy when its possibilities are called to his attention.

But much can be done to secure uniform standards and improved methods by conferences among the judges, and between them and the probation commission of the State. These conferences also enable those judges who have a whole-souled interest in the work to enkindle the enthusiasm of their associates. This is all the more important in the states where the judges appoint the probation officers.

How to secure suitable probation officers is the most important problem in the probation system. In states where judges are appointed for life, as in Massachusetts, the method of appointment by the judge under whom the

officer acts has worked well. But even here are found some judges, happily few in number, who persist in retaining officers little adapted for the work. Where judges persist in such conduct, after being shown its blighting effect on probation work in their district, it is usually because the judge himself takes no interest in probation. To prevent such injustice, no appointment of a probation officer by a judge should be effective until the state probation commission, after proper examination, certifies that the candidate is qualified properly to perform the duties of the office.

The New York system of a civil service examination, specially adapted for probation duties, has much to recommend it. Whatever the method of selection, no person should be appointed who does not secure the approval of the state board; and the board might well be given power of removal, after a hearing, upon written charges.

In the organization of a system of probation an essential element is a central state board. As probation is a part of the judicial system, I favor the Massachusetts method of having the members of the board appointed by the chief justice of the superior or trial court. And if a majority of its members are judges, the efforts of the board are most likely to secure the co-operation of the judges throughout the state.

The state board should have power to prescribe forms of records and reports, to suggest uniform and efficient methods of work by the officers, and promote co-ordination among them; and, in general, it should have ample authority to supervise the probation work throughout the state. Where this central board has also authority in the matter of appointments and removals above mentioned, the organization of the probation system seems complete. In order to maintain a high standard of probation work, the executive officer of the state board should periodically investigate the work of every probation officer; and there should be frequent conferences of the judges and of the probation officers conducted by members of the state board.

As to the organization of a parole system—for the present the machinery of the probation system might well be utilized for this work. The vital point in parole work is the appointment of a suitable board to determine to whom and when parole shall be granted, and on what terms. This question is closely associated with the indeterminate sentence and state control of

prisons. I have not had sufficient experience with parole problems to make specific recommendations.

We should agree upon the meaning of our terms. Probation and parole are often used synonymously, while, in fact, authorities and prison officials recognize a distinction. Probation applies to one conditionally released after conviction but before entering upon his sentence. Parole is understood to be the conditional release of a prisoner from an institution after the serving of sentence has been begun.

In Indiana the law authorizes the board of trustees acting as a parole board, or the Governor, to release on parole persons who have been confined under commitment in five institutions: the State Prison, the Reformatory, the Woman's Prison, Girls' School and Boys' School; to all of these, sentences are in effect indeterminate except for murder or treason. Prisoners so released are under supervision and accurate records are kept.

The Indiana probation law applies in three different ways, respectively, to felons, to misdemeanors, to juvenile delinquents. A person who is convicted of a felony is sentenced to a state prison or a reformatory. Sentence may be suspended and he be released on probation. The committal is sent to the institution to which he is committed and he is placed under the supervision of the agents of that institution exactly the same as if he were paroled therefrom.

If the offense is a misdemeanor, the court may suspend judgment and release the offender upon such terms and conditions as in his judgment and discretion seem right and proper. The prisoner is placed under the supervision of the probation officer authorized in each county by the juvenile court law or under the oversight of some other probation officer designated by the court. In either case the law makes proper provision for such subsequent action by the court as the behavior of the convicted person merits.

The juvenile court law provides for a juvenile court in every county in the state. There is a special juvenile court in Marion County, containing the city of Indianapolis. In all other counties the judge of the circuit court is ex-officio the judge of the juvenile court. Provision is made for the appointment of at least one paid probation officer in every county and for such volunteer officers as will agree to perform the service without pay.

Juvenile delinquents may be released by the court upon probation and placed under the care of these officers. They make reports to the Board of State Charities. They should understand thoroughly that their work should properly be divided into three phases: (1) before the trial; (2) at the trial; (3) after the trial. The first contemplates a complete investigation of the child's history. It should include everything that can be learned of it and its surroundings. The second involves presenting to the court all learned facts together with the conclusions and recommendations of the officer. The third contemplates complete supervision of the child after it is released upon probation. It is not necessary to state that in all this the best interests of the child alone should determine the action to be taken. What has been worked out in one place and another as to the best methods and practice in the case of children is being applied to adults who are subjects for probation. Our experience is now great enough to enable us to say that many men and women offenders can be reclaimed to useful lives without imprisonment, by correct probationary treatment.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Immigration and Crime.—That lax immigration laws are to a great degree responsible for many of the criminal cases calling for the attention of the courts, is the opinion of Major Richard Sylvester, of Washington, D. C., president of the international association of police chiefs, which held its nineteenth annual convention in Rochester in June. Several years ago the association memorialized Congress to define anarchy and more carefully restrict undesirable immigration.

Referring to the large number of alien criminals, Major Sylvester said: “Many of these subjects come from climates where capital punishment does not prevail, where the least respect for law and life is had. If certificates of good character from the authorities at places of departure in foreign lands and a year’s means of support were made legal requirements for presentation at our doors by each individual, the disadvantages might not be so great or so many.”

Hospitals For Inebriates.—The special committee of the New York Board of Estimate and Apportionment has unanimously reported in favor of carrying into effect a law which provides for the establishment of a board of inebriety and a hospital and industrial colony for inebriates for New York City.

The committee made an exhaustive investigation of conditions before reaching a conclusion. It found that the 29,461 persons arrested in New York last year and arraigned in the magistrates’ courts on the charge of public intoxication constituted more than one-sixth of all the arrests made for all causes. The records disclose that, of the 20,291 held for trial, about 15,600 were committed to workhouses, either directly or in default of payment of fine. Commenting on these and other statistics the report says:

Inebriety, therefore, furnishes a very large percentage of those who keep the police officers busy, clog the magistrates' courts, and fill the workhouses and jails. It furnishes also a very large number of cases for treatment in our public hospitals. Seven thousand male drunkards are treated annually in the alcoholic ward of Bellevue and allied hospitals. Carefully compiled records show that in the one year ended May 1, 1909, 498 men were treated for intoxication more than once in that ward, and over 100 from four to twelve times, and that in the course of a few years some individuals have been treated in the alcoholic ward over twenty times and have been committed to the workhouse over sixty times.

The committee does not overlook the moral effects of the treatment of inebriates under the plan which it has approved, but it especially points out the economic features. It finds that New York is spending annually on Blackwell's Island the amount of \$80,000 for cases committed for intoxication, and in addition there is the cost of two overflow wards at Bellevue, amounting to not less than \$65,000 per annum. The proportion of expenses in maintaining magistrates' courts chargeable to intoxication is at least \$125,000 a year, and a large additional expense is incurred in maintaining police officers for the city prison and for the alcoholic wards in hospitals. To use the language of the report: "As a result of all these expenses under the present system there is a complete lack of accomplishment. There is no pretense even that the individual is helped; quite the contrary, he is rather confirmed in his habits of inebriety and is permanently fastened on the community as an expense and as a bad example."

A Prison Farm Proposed for Iowa.—According to the Dubuque, Iowa, Telegraph-Herald, Warden Marquis Barr of the Iowa State Reformatory, is of the opinion that it would be a wise move for the state to purchase a large farm and work the prisoners upon it, turning the money which they make over to their respective families. He declares that this age must solve the great problem of justly punishing a man for his wrongs without at the same time taking from his family its only means of support.

The logical thing for a state to do is to purchase a farm of about a thousand acres, with barracks for the prisoners to eat and sleep in. Over one-third of the men in the prisons of Iowa could be set to work upon this farm, raising

grains and garden truck. They could be paid a certain wage and board in the same manner as the farmer pays his hired help, but every cent of these earnings should be turned over to the wife and children of the man who earns it. Not a penny should be given to him.

Warden Barr also said that he believed that if men knew that they would be compelled to work and work hard at a fair wage without themselves getting a penny of it, that there would be less crime. Many men during the fall commit crimes solely for the purpose of getting a warm place to stay during the winter and three good meals per day. They allow their families to shift for themselves. For the state to encourage this sort of a thing Mr. Barr says is absolutely wrong.

Charting Juvenile Crime.—The juvenile court of Detroit is reported to be greatly assisted in its campaign of saving girls and boys, by a chart which shows how many children are under the watchful care of the judge and his probation and truant officers, and how crime recedes and advances among the young at different seasons of the year; also what effect a big convention has on the city's morality, and how greatly parks and playgrounds help in the fight for decency.

The 600 boys and 170 girls are represented on the chart by cloth-headed tacks of different colors: red for bad boys, blue for bad girls, and white for children who are only truants or neglected. Each tack bears a bit of cardboard with a number which refers one to a filing cabinet where may be found the entire record of the boy or girl. Little groups of dots on the chart show where the gangs are, and indicate that bad boys are more gregarious than bad girls, who usually go alone or in couples. The chart also shows more plainly than any magazine article the evil results of congestion. The probation officers are not using this chart as an interesting sort of game, but as a valuable aid in their work for good citizenship.

London's Beggar Army.—Walter Weyl, a well-known writer on social and economic subjects, has the following to say in the "National Post" on London's army of the unemployed. It is of special significance to Americans who are facing the impending problems of vagrancy and mendicancy in urban centers.

“As I started to call a cab,” writes Walter Weyl, “suddenly there arose out of the darkness, as though evoked by some Aladdin’s lamp, four tattered, pale-faced men of the underworld. The four sprang forward to render me this slight service. One, quicker than his fellows, tore open the cab door and received his penny. Then the men vanished, slinking into the gray mist.

“Whence come these men? What manner of city was this that wasted able-bodied men on so paltry a task?

“Later that evening, when in the crossing currents of the streets, my cab came to a halt, I caught another fleeting glance at London misery. A naked, dirt-caked arm, thrust from a sleeveless coat, touched my shoulder; a haggard face peered into the cab window, and a voice harsh with anxiety asked, ‘Can I ’ave the luggage, sir?’ As the cab wound through the mazes of the London traffic, I saw this tattered man doggedly running behind us. Not once did he lose sight of the cab. At the hotel he was waiting, breathless.

“‘It’s mine, sir,’ he panted. ‘You promised me the luggage, sir.’

“For the chance of earning a shilling at work which did not need him, this wretched man had followed me through tortuous miles of London streets. What a city it was!

“I did not wish to see deeper into this abyss,” writes Mr. Weyl. “I had not come to England to view bottomless misery. But what is everywhere cannot be hid. On the following days I saw in street after street workless, homeless miserable men with broken shoes and dropping rags of clothes. I saw abject women, with trailing, bedraggled skirts, and with a flat sterile vacancy of expression, more tragic than despair. There were drunken men, too, and sodden women, and files of men—or of what had once been men—waiting outside bakers’ and butchers’ shops for crusts and refuse. The halt, the blind, the unemployed, the shifty beggars, and the wretches too timid to beg, passed in an unending procession. Long before sunset the lines had been formed for admission to the casual wards of the almshouses.

“‘It’s deplorable,’ commented my English friend (he was a doctor with a fashionable practice and aristocratic pro-pessions), ‘still every country has its poverty. Even in the States——’

“‘Yes,’ I admitted, ‘It is not for us to throw stones.’

“Later, however, as on our silent homeward walk I summed up all the dismal impressions of the day. I began to feel that after all there was a difference. American poverty was overwhelming, but it was not everywhere, and it was not so hopeless. Men did escape from American slums, and their children escaped.

“But the English slum was a prison, in which the fallen man and his children and grandchildren rotted. There was a droop, a sagging to these people; an inexpressible indifference to surroundings, an utter self-abandonment. You could seek out poverty anywhere, but in London it obtruded itself—stark, menacing, unescapable, like the naked, dirt-caked arm of the superfluous wretch who had followed my hansom.”

Prisoners to Build Roads.—It is an assured fact, according to the New Orleans Picayune, that a model road built by convict labor will be constructed connecting New Orleans with Kenner. This will take off four miles from the present railroad and other routes to this thriving section.

The state board of engineers will make the surveys as soon as possible and once started the work will be rapidly pushed.

Nothing but the best material will be used, and the drainage of the roadway will be given attention. It is expected either shells or some other substantial “topping” will be put on the thoroughfare.

New Jersey Adopts the State-Use Plan.—By the signing by Governor Wilson, the bill abolishing the present system of convict labor at the termination of the existing state prison contracts, all convict labor in the state and county prisons in New Jersey may be employed in the manufacture of articles for use in the institutions of the state and its subdivisions. The convicts are to be employed for nine hours, except on Sundays and public holidays. They may be employed in the construction or repair of prison institutions, and the labor of the convicts must be so directed as to produce “the greatest amount of actual product of articles and supplies” for all state and local institutions, the buildings and departments or offices of the state, “or in any public institution or department owned, managed and controlled by the state or public sub-division thereof.” Convicts may be employed in agriculture, horticulture and floriculture, and “all surplus product of this convict labor is to be disposed of at public sale

to the highest bidder.” The new law extends the prison labor system from the state prison to all county prisons, and makes city and county departments, offices and institutions, as well as the state institutions, its beneficiaries. The sum of 50 cents a day is to be paid to the families of the convicts.

Parole in Maryland.—That Maryland will save at least \$5,000 a year in earnings through the institution of the modern practice of paroling prisoners is stated by Charles D. Reid, of the Maryland Prisoners’ Aid Society. Heretofore in Maryland the practice has been but seldom resorted to in this state, with the result, says Mr. Reid, of failure to suppress crime, loss to the state and failure to encourage right living among the criminal class.

“Last year,” said Mr. Reid, “the amount of money taken in by fathers of families who have been paroled and thus saved in resource to the state was only \$600. The parole system was then started by arrangement between Judge Duffy and myself. Already in one month \$400 has been saved and the prospects are that at least \$5,000 will be saved during the year.”

Uncle Sam and His Delinquents.—According to the Meriden (Conn.) Journal, modern and advanced ideas upon penology will be introduced into the army method of handling garrison prisoners, according to orders just issued by Major General Leonard Wood, chief of staff. The new regulations will not apply to military convicts, but only to those sentenced to confinement and hard labor without being discharged from the service.

The purpose behind the new regulations is to give the prisoner every opportunity to make good, instead of discouraging all effort toward good behavior. Under the new orders, garrison prisoners will be allowed an abatement of five days of their terms of confinement for each period of twenty-five days of good conduct, when serving sentences of one month and not more than three months. On sentences exceeding three months they will be allowed the five days’ abatement for the first month, and thereafter ten days abatement for each period of twenty days’ good conduct. Abatements thus authorized may be forfeited wholly or in part by subsequent misconduct.

A garrison prisoner who has served one half of a sentence of ten days or more, according to the new orders, may submit a request to be put on

probation for the remainder of the sentence, and if his request is granted, may be restored to duty on condition that if his conduct is not good while on probation he will be required to serve the remainder of his sentence.

The new orders also make important changes in the methods of working garrison prisoners at military posts. These changes have been outlined in the following letter, sent to the commanders of the several departments:

“The present system of working prisoners under sentinels conveys a false impression as to the character of the prisoners, gives the public the erroneous idea that the army is full of bad characters requiring forcible handling, is injurious to the self-respect of the prisoners, discourages enlistments, and lowers the military service in public opinion. In addition to these objections, the system constitutes a heavy drain upon the command furnishing the necessary guard.

“It is deemed advisable and in the interests of the service, to adopt a different method of handling these garrison prisoners who are confined for comparatively short periods of time, to the end that the fewest practicable number of prisoners may be required to work under guard.

“It is therefore directed that as far as is practicable, as may be determined by post commanders in accordance with the above policy, garrison prisoners will be paroled for work under the general supervision of the officer or non-commissioned officer in charge of prisoners; and that prisoners whose character of offenses are of such a nature as to require that they be kept under armed guard shall be assigned tasks, as far as practicable, which will make the presence in the service of this class of men as little conspicuous as possible.”

Convicts to Build Road.—“The State of Utah,” according to a statement of Major M. P. Hackett, of Ogden, “is going to build an improved highway, 500 miles in length, stretching clear across Utah to Idaho at one end, and to the Arizona boundary at the other. The road is to be built entirely *with* convict labor, in accordance with a late law authorizing such use of the felons.

“But there is a humane side to the enterprise, that may well be copied by other states. For every day’s work performed by the men each will have one day subtracted from his sentence. To a convict who is in for a long time this

deduction is of big importance and it will be a great inducement for them to toil cheerfully and to the best of their ability.”

A Report From Texas Prisons.—A statement has been recently made by Ben. E. Cabell, chairman of the board of prison commissioners of Texas, that at this time Texas has between 600 and 700 prisoners at Huntsville and Rusk within the walls, and about 1,100 on her own state farms. About 1,000 are on share farms, where the state supplies the labor and gets part of the crop.

“At the beginning of the year about 800 convicts were being worked on farms and railroads. Within the last thirty days the railroad contracts have expired and have not been renewed. Some of the men were moved within the walls and others sent to the farms owned by the state. The present commissioners are in thorough harmony with Gov. Colquitt, who made it known that he wanted the contract and share farm system abolished as soon as practicable, and that all the convicts should be worked on state account. To this end the prison commissioners gave notice to all whose contracts expired with the end of this year that the contracts would not be renewed. This will leave very few men on share farms and none on contracts at the end of this year.

“The state has about 10,000 acres of land beside the 17,000 now in cultivation. This 10,000 acres will be put in cultivation for the year 1912. It is the intention of the prison commission (and has already been done) to put the farms and farm buildings in first-class condition, to make the buildings comfortable and healthful, to have good sanitation and wholesome conditions and all reasonable arrangements for the comfort of the convicts.”

New York's Campaign For a Farm Colony.—The “farm colony plan” has progressed further toward success in this year's session of the legislature than ever before. For several years charitable and correctional organizations have urged the state legislature to establish a farm and industrial colony for tramps and vagrants. At the present writing the bill has passed the lower house and is now in the order of third reading in the senate. Governor Dix is reported to have stated frequently his interest in this bill.

The bill, which has general interest in all states where the farm colony plan has been contemplated, provides for a state industrial farm colony for the

detention, humane discipline, instruction and reformation of male adults committed thereto as tramps or vagrants. The colony shall be under the control and management of a board of seven managers, to serve without compensation. The board shall appoint the superintendent and other employes, establish rules and regulations including the classification, parole, discharge and retaking of inmates. The board shall, if possible, utilize lands now owned by the state, if such lands are suitable as a site for the state farm colony. In case no lands now owned by the state are found to be suitable, the board of managers shall select a site of not less than 500 acres. The term of detention in the colony shall be not longer than 18 months with the exception that an inmate who has been manifestly committed to an institution after the age of 16 may be detained not longer than two years. There is no minimum term of commitment, nor shall any person under the age of 22 be committed to said colony. A significant clause in the act provides that it is the intent and meaning of this act that reputable workmen, temporarily out of work and seeking employment, shall not be deemed tramps or vagrants, nor be admitted to the said colony. Persons committed as vagrants to the farm shall be local charges, and those committed as tramps shall be maintained at the expense of the state. In no event shall any locality be charged a greater amount for the care of vagrants than the actual per capita cost for their maintenance in such state industrial farm colony.

An excellent campaign of publicity has been carried on this year for this bill by the charity organization society, and the association for improving the condition of the poor in New York through their joint application bureau. Rarely has any bill before the legislature found so much favor in editorials and news columns.

Hospitals for Inebriates.—The special committee of the New York Board of Estimate and Apportionment has unanimously reported in favor of carrying into effect a law which provides for the establishment of a board of inebriety and a hospital and industrial colony for inebriates for New York City.

The committee made an exhaustive investigation of conditions before reaching a conclusion. It found that the 29,461 persons arrested in New York last year and arraigned in the magistrates' courts on the charge of

public intoxication constituted more than one-sixth of all the arrests made for all causes. The records disclose that, of the 20,291 held for trial, about 15,600 were committed to workhouses, either directly or in default of payment of fine. Commenting on these and other statistics the report says:

Inebriety, therefore, furnishes a very large percentage of those who keep the police officers busy, clog the magistrates' courts, and fill the workhouses and jails. It furnishes also a very large number of cases for treatment in our public hospitals. Seven thousand male drunkards are treated annually in the alcoholic ward of Bellevue and allied hospitals. Carefully compiled records show that in the one year ended May 1, 1909, 498 men were treated for intoxication more than once in that ward, and over 100 from four to twelve times, and that in the course of a few years some individuals have been treated in the alcoholic ward over twenty times and have been committed to the workhouse over sixty times.

The committee does not overlook the moral effects of the treatment of inebriates under the plan which it has approved, but it especially points out the economic features. It finds that New York is spending annually on Blackwell's Island the amount of \$80,000 for cases committed for intoxication, and in addition there is the cost of two overflow wards at Bellevue, amounting to not less than \$65,000 per annum. The proportion of expenses in maintaining magistrates' courts chargeable to intoxication is at least \$125,000 a year, and a large additional expense is incurred in maintaining police officers for the city prison and for the alcoholic wards in hospitals. To use the language of the report: "As a result of all these expenses under the present system there is a complete lack of accomplishment. There is no pretense even that the individual is helped; quite the contrary, he is rather confirmed in his habits of inebriety and is permanently fastened on the community as an expense and as a bad example."

The New York Times recently published the following book review:

Tramps in the Making.—"The laboratory method in philanthropic work has never had more signal demonstration than in Alice Willard Solenberger's "One Thousand Homeless Men," (New York: Charities Publication Committee, \$1.25) a study of original methods in the true scientific manner and spirit. The author was for four years in charge of a district of the

Chicago Bureau of Charities and during that time compiled, in the regular course of her work, the statistics whose analysis and discussion make up this work. She endeavored also to trace the later histories of her subjects and, whenever this was possible, she had included it in her data. Mrs. Solenberger's untimely death, before she had written the final chapter in which she has purposed to sum up the conclusions to which she had been led by her long study and intimate knowledge of the homeless-man problem, lessens somewhat the interest of her book for the general reader. But her analysis of her tables of statistics and her discussions of the inferences to be drawn from them are so lucid and so practical that philanthropic workers will find the volume valuable alike for its facts and for its suggestions."

"Perhaps the most striking of the phases of the vagrancy problem brought out by Mrs. Solenberger's figures is the extent to which it is a native problem. Of the group of confirmed tramps, more than a fifth of the whole number of cases studied, 76 per cent. are native born. Of the vagrant runaway boys, nearly all were born on American soil and of American parents. The chapter devoted to these boys is particularly notable for its sympathetic but level-headed treatment of the causes which lead to boyish vagrancy, of its results, and of the methods by which it might be combined. Among these methods she thinks the most important would be the satisfying of adolescent "wanderlust" by normal, wholesome means and the closing of the railways to vagrants.

"Indeed the whole tramp problem she believes could be well-nigh solved if vagrants of all ages could be kept off railway trains. It has been estimated by several authorities, working independently, that there are in the United States at least half a million tramps. In her book Mrs. Solenberger studies the genesis, character, and previous environment of 220, and comes to the conclusion that in the huge army of which these are typical examples the variations of character and of inducing causes are so great that they call for much variety in methods of treatment. But the basic characteristic of all of them is the abnormal propensity for incessant wandering.

"'It is the mere accessibility of the railroads, more than anything else,' she writes, 'that is manufacturing tramps today. * * * When we succeed in absolutely closing these highways to any but persons having a legitimate right to be on them, we shall check at its source the largest single

contributory cause of vagrancy, and the problem of the tramps, as such, will practically be solved.'

"She thinks the problem should be dealt with by states, and that if several of the most populous and most tramp-ridden would deal with it adequately, for which she makes a number of practical suggestions, the rest would be driven, in self-defense, to follow their example.

"Other subjects treated by this same scientific method of study of actual cases, with all the preceding and following data that could be gathered, and then discussed in their general implications, are chronic beggars, seasonal and casual labor, interstate migration of paupers, homeless old men, the crippled, the defective, and industrial accidents. A number of appendices contain much statistical information and some articles on lodging houses. The book is published under the auspices of the Russell Sage Foundation."

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